

TENTATIVE RULING

Clayton Construction, Inc. v. Roclan Maguire dba Rocky Maguire, Inc., et al.: **25CV001074**

Plaintiff Clayton Construction, Inc.’s Application for Issuance of a Writ of Attachment:

On May 5, 2026, Plaintiff Clayton Construction, Inc. (“Plaintiff”) filed an Application for Issuance of a Writ of Attachment (“Application”), which was set for hearing on July 10, 2026. On July 7, 2026, Defendants Rocky Maguire, Inc. and Roclan Maguire (“Defendants”) filed an Opposition to the Application. The Opposition is untimely. A party opposing a writ of attachment must file and serve the opposition no later than five court days before the hearing, and failure to meet this mandatory deadline waives the right to oppose the issuance of the order. (Code Civ. Proc., § 484.060(a).)

The court, in its discretion (See *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262), will consider Defendants’ untimely Opposition so that the merits of the Application may be fully considered by the court. The court notes that on July 8, 2026, Plaintiff filed a Reply to Defendants’ Opposition and Objections to Declarations Submitted in Support of the Opposition. Given the late notice of the Opposition, Plaintiff may, but is not required to, file an amended or supplemental reply by July 17, 2026.

The Motion is continued to July 24, 2026, at 8:30 a.m.